



Approved as to
form only:


Date: 5/9/26

DELTA DENTAL OF WYOMING
Dental Benefits Contract (Risk)

Prepared for:
City of Cheyenne

**DELTA DENTAL OF WYOMING
GROUP BENEFITS CONTRACT**

This Group Benefits Contract (the "Contract") is effective as of the date listed in Section I as the "Effective Date", by and between City of Cheyenne (hereinafter referred to as the "Policyholder") and Delta Dental Plan of Wyoming d/b/a Delta Dental of Wyoming (hereinafter referred to as "Delta Dental").

*****PAYMENT OF THE FIRST MONTH'S PREMIUM IS CONSIDERED ACCEPTANCE OF THE
TERMS AND CONDITIONS OF THIS CONTRACT, EVEN IF YOU DO NOT SIGN THE
CONTRACT*****

Definitions

Capitalized terms used in this Contract are defined in Appendix A - Definitions, which is incorporated into this Contract as if fully restated herein.

Capitalized terms not defined in Appendix A - Definitions, but that are defined in the Subscriber's or Policyholder's other Coverage documents, shall have the same meaning as used in those documents, and those definitions are incorporated into this Contract.

Section I - Declarations

In exchange for Policyholder's agreement to perform its duties and obligations hereunder, Delta Dental shall provide certain dental insurance benefits for Policyholder's Subscribers and the Subscriber's respective Dependents, subject to the terms and conditions of this Contract, and the relevant Policy and/or plan (the "Coverage").

Delta Dental is only obligated to provide Policyholder, its Subscribers, and any Dependents of Subscriber, the benefits specifically indicated in this Contract and/or the relevant policy or plan. Delta Dental's obligation to provide such benefits is subject to all terms and conditions of this Contract.

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| A. <u>Effective Date of Contract:</u> | July 1, 2026 |
| B. <u>First Renewal Date of Contract:</u> | July 1, 2027 |
| C. <u>Initial Term:</u> | 12 months |
| D. <u>Group Number:</u> | 1007 |

- E. **Eligibility Period.** All newly Eligible Subscribers and their Eligible Dependents may enroll under Policyholder's Policy on the first day of the month following thirty (30) days of the Eligible Subscriber's full-time employment by Policyholder.
- F. **Coverage after termination.** Except as otherwise explicitly stated in this Contract, each Covered Person's Coverage under the Policyholder's Policy shall terminate at the end of the month in which a Subscriber's employment by Policyholder and/or Coverage terminates, even if a Covered Person was receiving treatment.
- G. **Covered Services.** In exchange for Policyholder's payment of the Premiums described in this Contract, Delta Dental will pay the following percentage of the Delta Dental's Allowed Fee for the following "Covered Services", depending on whether the Dentist participates in Delta Dental's Premier network or is non-participating, as described below. Dental services not listed below may not be considered Covered Services.

	<u>Delta Dental Pays:</u>	
	<u>Premier</u>	<u>Non-Participating</u>
<u>Diagnostic & Preventive Services</u>		
Cleanings	100%	100%
Bitewing X-rays	100%	100%
Exams	100%	100%
Fluoride Applications	100%	100%
Space Maintainers	100%	100%
Sealants	100%	100%
Full Mouth X-rays	100%	100%
<u>Basic Services</u>		
Extractions & Oral Surgery	80%	80%
Restorations	80%	80%
Endodontic Services	80%	80%
Periodontic Services	80%	80%
<u>Major Services</u>		
Bridges, Dentures	50%	50%
Crowns	50%	50%
<u>Orthodontic Services</u>		
Orthodontics	50%	50%
<u>Deductible</u>		
Per Person	\$50.00	\$50.00
Family	\$100.00	\$100.00
<u>Maximum Annual Benefit</u>		
	\$1,750.00	\$1,750.00
<u>Orthodontic Maximum Lifetime Benefit</u>		
	\$1,000.00	\$1,000.00

H. Payment to Dentists. Delta Dental shall make payment to Dentists providing Covered Services to Subscriber or Dependents (the "Treating Dentist"), as described below. Delta Dental's responsibility under this Contract to make payment for Covered Services is limited to the amounts described in subsection H, above, and by the Maximum Plan Allowance. Delta Dental will not make payment to Subscribers in advance of Covered Services being rendered or reimburse a Subscriber for amounts paid to a Treating Dentist. Payment will not be made by Delta Dental for services rendered by a Treating Dentist unless the services are Covered Services. Delta Dental's payment and the patient's co-insurance payment(s), if any, are to be accepted by the Participating Dentist as payment in full.

1. Participating Dentists. If the Treating Dentist is a Participating Dentist, Delta Dental shall pay the lesser of (a) the applicable percentage of the Allowed Fee (described in subsection H above) submitted on the Participating Dentist's claim form for the Covered Services, or (b) the Maximum Plan Allowance, as determined by Delta Dental. Delta Dental will send payment directly to the Participating Dentist upon receipt of the Participating Dentist's claim form, and any additional required documentation, for the Covered Service, and the Subscriber will be responsible for any co-insurance amount (including any co-payment) for the Covered Service and/or charges for any non-Covered Service.
2. Non-Participating Dentists. If the Treating Dentist is a Non-Participating Dentist, Delta Dental shall make payment directly to the Subscriber, and shall pay the lesser of (a) the applicable percentage of the Allowed Fee (described in subsection H above) submitted on the Non-Participating Dentist's claim form for the Covered Services; or (ii) the Non-Participating Dentist Maximum Plan Allowance, as determined by Delta Dental for the Subscriber's Policy. It is the Subscriber's responsibility to make full payment of the Non-Participating Dentist's charges for the Covered Service, as well as any co-insurance amount and/or charges for any non-Covered Service, to the Non-Participating Dentist.
3. Dentists Outside Wyoming. For Covered Services performed by a Dentist outside Wyoming who:
 - a. Is not a Participating Dentist, the payment shall not exceed the amount that would be payable if the Covered Services had been provided by a Participating Dentist in Wyoming;
 - b. Is a Participating Dentist with a Delta Dental affiliate in the state in which the Covered Services were performed, the payment shall not exceed the Maximum Plan Allowance for that Delta Dental affiliate.
- I. Deductible. Deductibles stated in a Subscriber's plan or policy are stated as a per-person total per Contract year, limited to a maximum of two Deductibles per family per Contract year on Basic and Major services. The Deductible does not apply to Diagnostic & Preventive services and Orthodontic services (if applicable).
- J. Limitation on Annual Benefits
 1. Maximum Annual Benefit. Delta Dental's obligation under this Contract to pay for Covered Services provided to Subscriber and/or any Dependent in any Contract year shall, in the aggregate, be limited to the Maximum Annual Benefit stated in the Policyholder's Policy.

2. Orthodontic Maximum Lifetime Benefit. If a Subscriber's Coverage includes orthodontic benefits, benefits available for orthodontics will be subject to the Orthodontic Lifetime Maximum. The Orthodontic Lifetime Maximum Benefit applies to orthodontic treatment begun while the Subscriber (and/or Dependents) have Coverage, as well as "work in progress" and "take over" orthodontics.

K. Monthly Premium Payment. Delta Dental will provide the Coverage in exchange for payment of the Premiums described below:

Employee or Elected Official	\$ 39.20
Employee or Elected Official + Spouse	\$ 83.90
Employee or Elected Official Child(ren)	\$ 94.55
Employee or Elected Official+ Family	\$ 126.90

1. Billing. Invoices for Premiums will be sent by Delta Dental monthly to the Policyholder. Invoices will be sent on the 15th of each month for the following month's Coverage, and payment shall be due in full by the 10th of the following month (the month to which the Premium billing applies).
 - a. Grace period on premiums. After the first Premium is paid in accordance with Subsection 1, Delta Dental will allow a grace period of thirty-one (31) days for the payment of each subsequent Premium amount due, so that Delta Dental shall not exercise any of its remedies under this Contract or applicable law until the expiration of 31 days after the Premium payment in full is due but unpaid (the "Grace Period"). During the Grace Period, this Contract and the Coverage will remain in effect.
2. Claims Hold or Termination for Non-Payment. If any Premiums are not paid in full when due, and such payment is not received within the Grace Period:
 - a. Delta Dental's obligation to perform under this Contract will be suspended. Delta Dental will place the Group on a "claims hold", and will have no obligation to pay any claims received during the claims hold, until all due but unpaid Premiums have been paid in full; and
 - b. Delta Dental may also, and without first having suspended performance, immediately terminate this Contract, and will have no further duties or obligations hereunder; provided, however, Delta Dental may make payment to Dentists for Covered Services (or the Subscriber, if the Covered Services have been rendered by a Non-Participating Dentist) authorized by Delta Dental and performed prior to the end of the Grace Period. In the event of termination as provided in this section, Policyholder shall remain liable to Delta Dental for the sum of: (a) all payments made by Delta Dental under this Contract since the Effective Date of this Contract; (b) plus eight and ½ percent (8.5%) of such amount to compensate Delta Dental for administering this Contract; (c) less the Premiums actually paid by Policyholder to Delta Dental.

- c. If this Contract terminates for any reason, the Policyholder shall be liable to pay all costs incurred by a Subscriber, on or after the date of the termination. In the absence of an amendment to this Contract, mutually agreed upon between Policyholder and Delta Dental, no change in Premium rates shall be made for twelve (12) months from the Effective Date.

- L. **Warranties and Representations by Policyholder.** The parties agree that Delta Dental has agreed to the Premium rates described in this Contract because Policyholder has warranted and represented to Delta Dental that, at all times during the Term (1) the Policyholder will pay one hundred percent (100%) of the full cost of Premiums for all Subscribers under the Policy, and (2) 100% of all Eligible Employees and Elected Officials 50% of all Eligible Dependents must be enrolled as Covered Persons under the Policy.

If any of the foregoing warranties and representations is or becomes untrue at any time during the Term, in whole or in part, this Contract may be terminated by Delta Dental immediately, at any time, or Premiums may be adjusted by Delta Dental, immediately on notice to the Policyholder, and such adjusted Premiums shall be binding on Policyholder upon notice by Delta Dental to Policyholder.

Benefits under this Contract shall be determined in accordance with Section IV - Benefits.

Section II - Eligibility

A. General Eligibility Rules

1. No person will be eligible for Coverage under this Contract unless and until the Policyholder has currently enrolled that person as a Subscriber, or listed that person as a Dependent, as applicable. Coverage under the Policy shall terminate immediately upon an individual no longer being enrolled as a Subscriber or listed as a Dependent.
2. The Policyholder shall provide address change and eligibility change information for Subscribers and Dependents immediately upon the occurrence of any facts that would impact the Subscriber's or Dependent's eligibility. The Policyholder shall be liable to Delta Dental for any Benefits paid out by Delta Dental on the basis of incorrect eligibility or address information, if the Policyholder has failed to communicate such changed eligibility or address information in accordance with this section, and Delta Dental's payment in error is made, in whole or in part, as a result of the incorrect information.

B. Effective Date of Eligibility

1. **Effective Date.** All persons that are Eligible Employees, Elected Officials or listed as a Eligible Dependents on the Effective Date of this Contract are immediately eligible for Coverage under the Policy (unless otherwise noted on the Policyholder's Summary of Benefits).
2. **After the Effective Date.** For all individuals who become Eligible Employees, Elected Officials or Eligible Dependents after the Effective Date, eligibility for Coverage will

begin on the first day of the month following whichever of the following dates is applicable:

- a. Newly hired or rehired Employees and Elected Officials: The date on which employment compensation begins plus the number of days specified as the Eligibility Period.
- b. Spouse: Date of marriage.
- c. Newborns: Date of birth.
- d. Legal adoptions or guardianships: An adopted child from the earlier of the date the petition for adoption is filed or entry of the child in the adoptive home. Physical placement is not a requirement for Coverage. For wards of the State of Wyoming, the Coverage date shall be the finalization of adoption.

A. Termination of Eligibility. Coverage under the Policy will terminate for all Subscribers and Dependents at the earlier of:

1. The termination of this Contract; or
2. The last day of the month for which Premium payments have been made if the Policyholder fails to pay the Premiums required by this Contract.

Coverage for a Subscriber, and of that Subscriber's Dependents, will also terminate immediately if that Subscriber ceases to be a Subscriber as defined by this Contract. A Dependent's Coverage also terminates immediately upon failure to meet the Dependent eligibility requirements of this Contract. In no event will Coverage for any Covered Person continue beyond the date Delta Dental is advised by the Policyholder that the individual is no longer eligible for Coverage.

B. Loss of Eligibility During Treatment. If a Subscriber and/or Dependent become no longer enrolled under the Policy during a course of dental treatment that would otherwise be Covered Services, only that portion of the course of dental treatment completed while the individual was enrolled under the Policy will be eligible for Coverage.

C. Continuation Coverage - COBRA

1. **COBRA.** Subscribers who have been terminated, voluntarily or involuntarily, from employment by Policyholder, and the terminated Subscriber's Dependents, the Dependents of a Subscriber upon the Subscriber's death, and Subscribers and/or Dependents in certain other situations (collectively, a "Former Subscriber/Dependent"), may be entitled to an extension of benefits under the federal Consolidated Omnibus Budget Reconciliation Act (COBRA). Delta Dental does not make any representation that any Former Subscriber/Dependent will be eligible for COBRA Coverage after the Subscriber's employment ends, the Subscriber dies, or in any other situation, and any such extension of benefits under COBRA may be at the Former Subscriber/Dependent's expense.

2. Notice of COBRA Coverage Eligibility. The Policyholder must immediately notify Delta Dental as soon as a Former Subscriber/Dependent is eligible to continue his/her Coverage under COBRA ("COBRA Coverage"). If elected by the Former Subscriber/Dependent, COBRA Coverage shall only be in effect up to the first day of the month after the Former Subscriber/Dependent notifies the Policyholder that he or she no longer wants COBRA Coverage, or until the end of the Former Subscriber/Dependent's COBRA Coverage period, whichever occurs first. Policyholder shall give Delta Dental at least thirty-one (31) prior days' notice to terminate the Former Subscriber/Dependent's COBRA Coverage.
3. Payment of COBRA Premiums. Policyholder shall be responsible for making all payments to Delta Dental for the Former Subscriber/Dependent's COBRA Coverage ("COBRA Premiums"), in the same manner as Premium payments required hereunder. The amount of a Former Subscriber/Dependent's COBRA Premium will be based on Delta Dental's COBRA Coverage rates then in effect and may change from month to month.
4. Duration of COBRA Coverage. A Former Subscriber/Dependent who elects COBRA Coverage, and fulfills all applicable requirements, will be considered a Subscriber or Dependent (as applicable) as long as COBRA Coverage remains in effect. COBRA Coverage shall only remain in effect until the last day of the month for which a COBRA Premium has been paid to Delta Dental by the Policyholder for the Former Subscriber/Dependent's COBRA Coverage. However, a Former Subscriber/Dependent's COBRA Coverage may be retroactively reinstated for the 60-day COBRA "election" period provided by applicable law, if the Policyholder pays the applicable COBRA Premiums for such period.
5. No Assumption of Obligations by Delta Dental. The Former Subscriber/Dependent is fully and solely responsible, and Delta Dental shall have no responsibility for the costs of any dental services provided after the Former Subscriber/Dependent is no longer enrolled in COBRA Coverage. Delta Dental does not assume any of Policyholder's COBRA obligations with respect to COBRA Coverage ("Employer COBRA Duties") (including the obligation to notify potential beneficiaries of their COBRA rights or options). Policyholder agrees that it will perform its Employer COBRA Duties in full, unless Policyholder requests in writing that Delta Dental assume specific Employer COBRA Duties, and Delta Dental accepts in writing. Notwithstanding the foregoing, Delta Dental shall only perform any assumed Employer COBRA Duties as an independent contractor of Employer and specifically shall not assume any of Policyholder's liabilities under COBRA, including for failure to perform the Employer COBRA Duties, or any obligation to act as a fiduciary. The Policyholder shall indemnify and hold Delta Dental harmless for any claims, damages or other amounts Delta Dental suffers in any way connected with Policyholder's failure to perform the Employer COBRA Duties.

Section III - Benefits

Delta Dental agrees to provide Coverage to Covered Persons pursuant to Delta Dental's policies and procedures (including but not limited to Delta Dental's processing policies) and this Contract's terms and conditions, including, but not limited to, the classifications, limitations and exclusions described in this Sections V and VI of this Contract. Delta Dental's policies and procedures are subject to change from time to time and shall be applicable to the Coverage

provided under this Contract immediately upon the revised policy or procedure taking effect. Changes to Delta Dental policies or procedures shall not be considered an amendment to this Contract.

Delta Dental shall pay for the following Covered Services, as described in Section I, above:

More specific details regarding Covered Services are described in the Policyholder's Summary of Benefits and associated documents.

Policyholders, Subscribers and Dependents should refer to those documents for more information on Coverage for specific Covered Services.

- A. **Diagnostic & Preventive Services:** Services and procedures to evaluate existing conditions and/or to prevent dental abnormalities or disease. These services include examinations, prophylaxis, fluoride treatments and some x-rays. (see summary of benefits for specific coverages in this section)
- B. **Basic Services:** These services include minor restorative services, including amalgam and composite fillings, periodontic services, endodontic services, oral surgery, and emergency treatment. (see summary of benefits for specific coverages in this section)
- C. **Major Services:** These services include major restorative services including crowns and prosthodontic services. (see summary of benefits for specific coverages in this section)
- D. **Orthodontic Services (If included in coverage):** These services include treatment and procedures to correct malpositioned teeth.

Section IV - Limitations

- A. **Limitations in Appendix V.A.** The Coverage for the Covered Services described in Appendix V.A are limited as outlined in that Appendix, unless specified in the Policyholder's Benefit/Policy Handbook and/or the Policyholder's Summary of Benefits, applicable to the Coverage elected. Certain benefits may be subject to waiting periods, as outlined in the Summary of Benefits.
- B. **Processing policies.** Delta Dental may, from time to time, enact processing policies that may have the effect of limiting benefits available under the Coverage elected by a Subscriber. Processing policies applied to a claim are noted on the Explanation of Benefits (EOB).
- C. **Treatment Plans**
 - 1. **Termination: generally.** A Treating Dentist may terminate a Covered Person from the Treating Dentist's practice, in his/her professional judgment including for lack of patient interest and/or cooperation with treatment. If the Treating Dentist is a Participating Dentist, the Participating Dentist must promptly provide written notification of the termination to Delta Dental and to the Covered Person. If the Treating Dentist is a Non-Participating Dentist, the Covered Person shall notify Delta Dental in writing of the termination within five (5) days of the Covered Person receiving notice of the termination. Delta Dental shall have no obligation to pay for Covered Services rendered by the terminating Treating Dentist unless the claim

is received by the last day of the month in which the Covered Person was terminated from the Treating Dentist's practice. Nothing in this Contract modifies any obligations a Treating Dentist may have to provide notice of termination in a specific form or within any specific timeframe, and Delta Dental assumes no liability for any Treating Dentist's failure to satisfy any legal obligations the Treating Dentist may have under applicable law to provide specific notice of termination of a Covered Person from the Treating Dentist's practice.

2. Termination before the Treatment Plan completion. If a Covered Person is terminated from the Treating Dentist's practice before a Treatment Plan is complete, for any reason, Delta Dental's obligation to pay for Covered Services rendered in connection with the Treatment Plan will cease immediately on the date the Covered Person is terminated from the Treating Dentist's practice, and Delta Dental will only pay for Covered Services completed in connection with the Treatment Plan up to the date of termination.
3. Optional services. In all cases in which the Covered Person selects a more expensive Treatment Plan than is customarily provided (determined by Delta Dental in its sole discretion, reasonably exercised), Delta Dental will pay the applicable percentage of the fee that would be charged for a customarily provided Treatment Plan. The Covered Person is responsible for the remainder of the Treating Dentist's fee for the Treatment Plan provided. Notwithstanding the foregoing, the Covered Person shall be responsible for all fees of the Treating Dentist for dental treatments that are not Covered Services, whether or not the Covered Services are part of a Treatment Plan.

D. Orthodontics (only if included in coverage)

1. Repair or Replacement. Delta Dental will not pay any charge for the replacement or repair of an orthodontic appliance, irrespective of whether the appliance is furnished in connection with Covered Services. The cost of all orthodontic appliances replacement or repair will be the responsibility of the Covered Person.
2. Payment schedule. Payment for Orthodontic Services (if the Coverage includes orthodontic coverage) is based on the signed financial Agreement between the Covered Person and the Treating Dentist and/or treatment length. Delta Dental will pay an initial down payment on the Covered Person's banding date, followed by payments for ongoing treatment.

Section V - Exclusions

This Contract does not provide Benefits, and Delta Dental does not pay, for all dental treatment, and specifically, the services described on Appendix VI are excluded from Coverage pursuant to this Contract. Additional specific exclusions are outlined in the Benefit/Policy Handbook. The Policyholder and Covered Persons should call Delta Dental at 800-735-3379 with any questions regarding whether a certain dental service is a Covered Service under the Policy.

Section VI - Coordination of Benefits

- A. Definitions. All the benefits provided under this Contract are subject to the terms and conditions stated in this Section. For the purposes of this Section VII, the following terms shall have the following meanings:

1. "Program" means any contract, including this Contract and all benefits hereunder, providing benefits or services for or by reason of dental care or treatment, which benefits, or services are provided by or through:
 - a. any group service, or group prepayment plan, or group practice or any group or individual dental plan, or blanket insurance coverage; or
 - b. coverage under labor-management trustee programs, union welfare programs, employer or employee benefit organization program; or
 - c. any governmental program, or coverage provided by any statute (other than Medicaid or Medicare).

The term "Program" shall be construed separately with respect to each policy, contract or other arrangement for benefits or services and separately with respect to that portion of any such policy, contract, or other arrangement which reserves the right to take the benefits or services of other plans into consideration in determining its benefits and that portion which does not.

2. "Allowable Benefits" means any necessary, reasonable and customary item or expense, at least a portion of which is covered under at least one of the Programs covering the person for whom claim is made or service provided.
3. When a Program provides benefits in the form of services rather than cash payments, the reasonable cash value of each service rendered shall be deemed to be both an Allowable Benefit and a benefit paid.
4. "Claim Determination Period" means a "benefit year", as determined by the Policyholder's Summary of Benefits.
5. "Dependent" means, with respect to any Program, any person who qualified as a dependent under such Program.
6. A "Coordination of Benefits Clause" or "COB Clause" means a contractual provision that establishes an order in which Programs pay out Allowable Benefits, to avoid duplication in payments, and to permit Programs intended to provide secondary insurance to reduce the Allowable Benefits paid out, so that the combined Allowable Benefits of all applicable Programs do not exceed total allowable expenses. This Section VII is a COB Clause.

B. Effect on Benefits

1. This section shall apply in determining a Covered Person's entitlement to benefits under this Contract for any Claim Determination Period if, for the Allowable Benefits provided to the Covered Person during the Claim Determination Period, the sum of:
 - a. the benefits that would be payable on the Covered Person's behalf under this Contract in the absence of this COB Clause, plus
 - b. the benefits that would be payable under all other Programs in the absence of COB Clauses in the contracts establishing those Programs, would exceed such Allowable Benefits.

2. As to any Claim Determination Period with respect to which this Section VII is applicable, the benefits that would be payable under this Program in the absence of this COB Clause for the Allowable Period shall be reduced to the extent necessary so that the sum of benefits under all other Programs, except as provided below, shall not exceed the total of such Allowable Benefits. Benefits payable under another Program include the benefits that would have been payable had a claim been duly made for those benefits.

If, (i) another Program which is described above and which contains a COB Clause would, according to its rules, determine its benefits after the benefits available to a Covered Person under the Policy have been determined, and (ii) the rules set forth below would require this Contract to determine its benefits before such other Program, then the benefits of such other Program will be ignored for the purpose of determining the benefits under this Program.

C. **Benefit Determination Order.** The rules establishing the order of benefit determination are:

1. The benefits of a Program which covers the person on whose Allowable Benefits a claim is based, other than as a Dependent, shall be determined before the benefits of a Program which covers such person as a Dependent; and
2. The benefits of a Program which covers the person on whose Allowable Benefits claim is based as a Dependent of both spouses (or guardians), shall be determined according to the "birthday rule"; that is, the parent (or guardian) with the birthday occurring first during the year, will be determined as the Covered Person with Allowable Benefits.

When this Section operates to reduce the total amount of benefits otherwise payable to a Covered Person during any Claim Determination Period, each benefit that would be payable in the absence of this Section shall be reduced proportionately and such reduced amount shall be charged against any applicable benefit limit of this Contract.

- D. **Right to Receive and Release Necessary Information.** For the purpose of determining the applicability of and implementing the terms of this COB Clause, or any COB Clause of any other Program, Delta Dental may, without the authorization or consent, of or notice to, any Covered Person, release to or obtain from any insurance company or other organization or person, any information, with respect to any Covered Person, which Delta Dental deems to be necessary for such purposes, to the extent such disclosure is consistent with HIPAA. Any Covered Person claiming benefits under this Program shall furnish Delta Dental such information as may be necessary to implement this provision. Delta Dental shall not be required to determine the existence of any other Program, except through the Covered Person claiming benefits under this Contract.
- E. **Multiple Delta Dental Coverage.** If a Covered Person is eligible for benefits under two or more Programs contracted by or through Delta Dental, and more than one of the Programs provides Coverage for a particular service, Delta Dental will pay according to Section VII. The cost of such payment will be distributed pro-rata between the applicable Programs.
- F. **Facility of Payment.** Whenever payments which should have been made under this Program in accordance with this Section VII have been made under any other Program,

Delta Dental shall, with the written consent of the Covered Person, pay over to any organization making such other payments any amounts Delta Dental shall determine to be warranted in order to satisfy the intent of this Section VII and amounts to be paid shall be deemed to be benefits paid under this Program and, to the extent of such payments Delta Dental shall be fully discharged from liability to make such payments under this Program.

- G. **Right of Recovery.** Whenever payments have been made by Delta Dental with respect to Allowable Benefits in total amount, at any time, in excess of the maximum amount of payment necessary at that time to satisfy the intent of this Section, the Subscriber, Dependent for whose benefit the payment was made, and the Policyholder shall be jointly and severally liable to repay the excess payments to Delta Dental. Delta Dental shall have the right to recover such payments to the extent of such excess from any or all of the foregoing, in any order and in any proportion, as Delta Dental shall determine in its sole discretion. Delta Dental's right to recover such payments from the Subscriber, Dependent(s) and/or Policyholder shall not abrogate or be to the detriment of any right Delta Dental may have to recover some of all of the excess payments from any other person to or for or with respect to whom such payments were made.

Section VII - Conditions Under Which Benefits Shall Be Provided

- A. Benefits, except as explicitly stated otherwise in this Contract, are available from the Eligibility Date of an Eligible Person.
- B. No Warranty. While an Eligible Person may elect to receive the services of any Dentist, Delta Dental is not liable for, and does not make any guarantee, warranty or representation, regarding the availability of, or the quality of care provided by, any Dentist.
- C. Information Required to Administer Claims. The Policyholder agrees, and shall ensure that each Covered Person agrees (and will authorize if necessary, in Delta Dental's sole discretion and at its request), that Delta Dental shall be entitled to receive, to such extent as may be lawful, from any Treating Dentist, or from hospitals or other health care facilities in which a Dentist's care is rendered, such information and records relating to attendance to or examination of, or treatment rendered to, a Covered Person as may be required in the administration of such claims. However, that Delta Dental shall in every case hold such information and records as confidential, subject to Delta Dental's rights and obligations to use and/or disclose such information in this Agreement or under applicable law. Receipt of such information shall be a condition precedent, but not the sole condition, to the approval of claims hereunder.
- D. Claim Appeals. If a Covered Person is not satisfied with the results of the processing of his or her claim for benefits, the Covered Person may make a written appeal, under the process described in Appendix VII.D.

Section VIII - Delta Dental Obligations

- A. Responsibility to Determine Participating Status. Covered Persons shall be solely responsible for determining whether the Treating Dentist is a Participating Dentist.
- B. Response to Pre-Determination Request. Delta Dental is not accepting or processing pre-determination of benefits currently.

- C. Delta Dental shall make no payment for any services rendered to a patient who is not a Covered Person at the time the service was rendered.
- D. Timeframe for Payment. Delta Dental shall pay claims submitted for Covered Services for within twenty (20) days or as soon as reasonably possible, following receipt of the Treating Dentist's "clean" claim form, or claim of Covered Person for Benefits, as follows.
- For a Participating Dentist, by direct payment to the Participating Dentist.
 - For a Non-participating Dentist, by direct payment to the Covered Person.

A claim form shall only be deemed "clean" if it contains all information reasonably required by Delta Dental to determine whether the services rendered were covered services under this Contract provided to a Covered Person. Any deficiency in the information provided may slow processing of the claim, and delay payment of the claim. The 45-day period shall begin once Delta Dental is in receipt of a "clean" claim.

- E. Notification of denial of payment for services, for whatever reason, shall be sent to the Covered Person and, if applicable, to the Participating Dentist.
- F. Stale Claims. Delta Dental shall not be obligated to pay claims submitted after the Allowable Period, which shall be twelve (12) months after (i) the date of service, for an isolated service, or (ii) the date of last service, for a service rendered pursuant to a Treatment Plan. Failure to submit a claim within the Allowable Period shall not invalidate nor reduce any claims if it was not reasonably possible to submit the claim within such time, provided the claim is submitted as soon as reasonably possible and in no event, except in the absence of legal capacity, later than one (1) year from the time the claim is otherwise required.

Section IX - Policyholder's Responsibilities In exchange for Delta Dental performing its duties and obligations hereunder, the Policyholder shall:

- A. Pay Delta Dental, in advance, the Premiums specified in this Contract for all Covered Persons. Delta Dental may at its sole option, send notification to the Policyholder of an adjustment in Premium rates, Benefits or co-payments if the Policyholder has prepaid, and adjustment is required to correct for a Group claims history experience substantially different than the Premium rate, Benefits or co-payment determinations were originally based on.
- B. Enroll as Subscribers all Eligible Employees and Elected Officials of the Policyholder and list, if covered, all Dependents of those Subscribers, to the extent required under the Contract. The Policyholder will advise Delta Dental monthly if there are changes to enrollment of Subscribers and/or Dependents.
- C. Provide information to all Covered Persons as to the existence and terms of this Contract and the right to receive services as provided herein from a Dentist of each person's choice, as such choice may be exercised from time to time during the continued Coverage of such person.
- D. Advise each Covered Person to notify his/her Treating Dentist at the time of his/her first appointment that the Covered Person is entitled to Benefits under this Contract, and to

provide the Treating Dentist with the Covered Person's Delta Dental Group identification card.

- E. Permit Delta Dental, by its auditors or other authorized representatives, on reasonable advance written notice, to inspect records of Policyholder in order to verify the accuracy of lists of Eligible Employees, Elected Officials and Covered Persons prepared by Policyholder and submitted to Delta Dental. Clerical errors or delays in keeping or relating data shall not invalidate eligibility or Coverage which otherwise would be validly in force or continue eligibility which would otherwise be validly terminated, but, upon discovery of such errors or delays, an equitable adjustment of Premium obligations shall be made.

Section X - Procedure Codes and Nomenclature

Delta Dental will only use and recognize procedure codes and nomenclature for approved procedures that are designed and approved by Delta Dental Plans Association as adopted from the most frequently used and reported dental procedures. These procedure codes are not all inclusive; however, the procedures for which codes are given are frequently considered Covered Services in dental insurance plans. Delta Dental reserves the right to use ADA Codes and/or other dental codes as determined by Delta Dental. Notwithstanding the foregoing, Policyholder acknowledges and agrees that the fact that a procedure code exists for a procedure or service does not mean the procedure or services is a Covered Service.

Section XI - Term, Termination and Renewal

- A. **Term.** This Contract shall be effective from the Effective Date for the Contract Term, as stated in Section I, unless sooner terminated as stated in this Section XII, or as otherwise provided in this Contract.
- B. **Termination.** Except as otherwise explicitly stated in this Contract, this Contract may only be terminated by one of the following methods:
 - 1. **Failure to Pay Premiums.** This Contract may be terminated by Delta Dental upon Policyholder's failure to pay premiums, as described in Section I.L.2.b.
 - 2. **Fraud or Misrepresentation by Policyholder, Subscriber or Dependent.** The making by the Policyholder, or any Subscriber or Dependent, of any fraudulent claims for Benefits shall render this Contract null and void from the Effective Date and all claims submitted under this Policy shall be forfeited. Subject to Sections XII.B.2.a-d Delta Dental may terminate this Contract immediately for fraud or misrepresentation by the Policyholder, any Subscriber or Dependent.
 - a. **Incontestability.** Except for fraudulent misstatements in an application for Coverage, or failure to pay any Premium, by the Policyholder, a Subscriber, or Dependent, the Policy is incontestable after the expiration of three (3) years from the Effective Date.
 - b. **Time limit on certain defenses - Misstatements by Policyholder.** After two (2) years from the date of issue of this policy no misstatements, except fraudulent misstatements, made by the Policyholder in the application for such policy shall be used to void the policy or to deny a claim for loss incurred or disability, as defined in the policy, commencing after the

expiration of such two-year period. The foregoing policy provision shall not be so construed as to affect any legal requirement for avoidance of a policy or denial of a claim during such initial two- year period, in the event of misstatement with respect to age or occupation or other insurance.

- c. **Non-disclosure.** For the first two (2) years from the Effective Date of this policy, any material misstatement, non-disclosure or concealment, whether or not such are innocent or fraudulent, in relation to any matter affecting this insurance shall render this policy void at Delta Dental's option.
3. **Failure to Maintain Group.** Delta Dental may terminate this Contract if Policyholder has less than two (2) enrolled Subscribers (excluding Subscribers that are otherwise covered by a public or employment-based health benefits plan) in its Group at any time. The termination shall, at Delta Dental's sole discretion, be effective the first day of the month after Policyholder's Group has less than two (2) enrolled Subscribers.

C. Renewal

1. **Automatic Renewal.** Unless sooner terminated as provided in Section XII.B, or a party elects not to renew this Contract as provided in Section XII.C.2 or 3, this Contract shall renew on the First Renewal Date for the Contract Term stated in Section I. Thereafter, unless terminated pursuant to Section XII.B, or a party elects not to renew this Contract as provided in Section XII.C.2 or 3, the Contract shall renew on the anniversary of the First Renewal Date (each a "Renewal Date") for any number of successive Contract Terms.
2. **Policyholder Option Not To Renew.** Delta Dental shall, not less than forty-five (45) days prior to the First Renewal Date, and each subsequent Renewal Date, notify Policyholder of any change in Premium rates to be effective during the next Contract Term (the "Rate Change Notice").
 - a. Policyholder shall, **not less than thirty (30) days prior to any Renewal Date,** notify Delta Dental if Policyholder elects not to renew the Contract for the next Contract Term ("Non-Renewal Notice").
 - b. If Policyholder does not provide its Non-Renewal Notice as required by Section XII.C.2.a, this Contract shall renew for the next Contract Term, on the same terms and conditions, except that the Premium rates for the next Contract Term shall be those set forth in Delta Dental's Rate Change Notice.
3. **Delta Dental Option Not To Renew.** Delta Dental may elect not to renew this Contract by giving written notice to the Policyholder at least thirty (30) days prior to the end of any Contract Term.

Section XII - Limitations Period

No action at law or in equity shall be brought to recover on the Policy prior to the expiration of sixty (60) days after written proof of loss has been furnished. If such loss of non-payment of a claim for Covered Services, written proof of loss shall require at least the information required under Section VIII.C. No such action shall be brought after the expiration of three (3) years after the time written proof of loss is required to be furnished.

Section XIII - General Provisions

- A. **Benefit/Policy Handbook.** Delta Dental will provide at Effective Date to the Policyholder, and Policyholder will make available to each Eligible Employee and Elected Official a Benefit/Policy Handbook, summarizing the Benefits to which Covered Persons are entitled under this Contract and to whom the Benefits are payable. If any amendment to this Contract shall materially affect any Benefits described in the Benefit/Policy Handbook, corrected amendments, booklets, or booklet inserts, showing the change shall be issued.
- B. **Binding Arbitration.** Any controversy or claim not pertaining to dental service or treatment which arises out of or relates to this Contract or the breach thereof, shall be settled by binding arbitration conducted by a single mutually acceptable arbitrator who shall conduct the arbitration in accordance with the then-current Rules of the American Arbitration Association for commercial disputes. If the parties are unable to agree upon an arbitrator, they may apply to any court of competent jurisdiction for the appointment of an arbitrator in accordance with the Wyoming Uniform Arbitration Act. Any such arbitration shall be conducted in Cheyenne, Wyoming. Each party shall bear their own costs in such arbitration and shall equally split the arbitrator's fees and any administrative fees charged by the American Arbitration Association. The arbitrator shall have the authority, but not the obligation, to award reasonable attorney fees and costs to the prevailing party in the arbitration.
- C. **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of Wyoming. If any action is brought to enforce an arbitration award, or any action not subject to binding arbitration described in Section XIV.B, the exclusive venue and jurisdiction shall be in the courts in and for Laramie County, Wyoming; except that exclusive venue for any claim over which the federal courts have exclusive jurisdiction shall be in the district court for the federal District of Wyoming. This provision shall survive the termination of the Agreement.
- D. **Amendment.** No agent of the Policyholder, employee, elected official or Delta Dental has authority to change this Contract or waive any of its provisions. No change in this Contract shall be valid unless approved by an executive officer of Delta Dental and evidenced by endorsement hereon.
- E. **Change of Law.** The terms of this Contract are intended to follow all federal, state and local statutes, regulations and ordinances applicable on the date the Contract takes effect including but not limited to HIPAA and, in the event of conflict, the state and/or the federal law will supersede the terms of this Agreement. The parties agree to execute such amendments as may be necessary for HIPAA compliance as additional regulations are promulgated or become final and effective. In the event that any federal or state legislative or regulatory authority adopts any law or regulation which (a) renders this Agreement illegal or prohibited by applicable law or regulation; (b) threatens Delta Dental's tax-exempt status; (c) establishes a material adverse change in the method or amount of reimbursement or payment for services under this Agreement; (d) imposes requirements which require a material adverse change in the manner of either party's operations under this Agreement, (e) legal counsel for either party advises that any of the terms or conditions of this Agreement poses an unreasonable risk of violating any law or regulation, then, upon the request of either party, the parties will enter into good faith negotiations for the purpose of establishing such amendments or modifications as may be appropriate in order to accommodate the change in law or regulations while preserving

the original intent of this Agreement to the greatest extent possible. If, after thirty (30) days of such good faith negotiations, the parties are unable to reach an agreement as to how this Agreement will continue, then either party may terminate this Agreement upon one (1) day prior written notice. Notwithstanding the foregoing, if the change in law requires the immediate termination of this Agreement, this Agreement will be deemed to be so terminated.

- F. **Payment in Error.** If Delta Dental makes a payment in error, Delta Dental may require the Policyholder to refund the amount paid in error. Delta Dental reserves the right to correct payments made in error by deducting against subsequent claims, requiring refunds or by taking legal action.
- G. **Assignability.** No part of this Contract, or any right, duty or obligation created by this Contract, is not assignable by the Policyholder, except with Delta Dental's prior written consent. This Contract may be freely assigned by Delta Dental.
- H. **Clerical error.** If a clerical error is made by Delta Dental, it will not affect the insurance of any Subscriber or Dependent. No error will continue the Coverage of Subscriber or Dependent beyond the date it should end under the terms of the Policy.
- I. **Not in lieu of Workers' Compensation.** Policyholder acknowledges and agrees, and shall ensure that each Covered Person acknowledges and agrees, that neither this Contract, nor any Coverage provided by Delta Dental, provides coverage or benefits for workers' compensation claims, or provide workers' compensation benefits.
- J. **Physical examination and autopsy.** The Company, at its own expense, has the right and opportunity to examine the person of any individual whose loss is the basis of claim under the Policy when and as often as it may reasonably require during the pendency of the claim, and to make an autopsy in case of death where it is not forbidden by law.
- K. **Entire Contract.** This policy, including the application, Contract and any amendments, riders or endorsements, constitute the entire Contract of insurance.
- L. **Proceeds exempt from creditors.** Except as otherwise provided by this Contract, the proceeds are exempt from claims of creditors.
- M. **Group Replacement.** This policy provides for continuance of coverage for all participants when Delta Dental's Policy replaces a prior health plan's benefits.
- N. **Payment of Benefits.** Benefits are payable to the Subscriber or Dependents, or to their respective designated beneficiary(ies) or to their respective estate. If the Subscriber or Dependent is a minor or otherwise not competent to give a valid release, the Benefits may be made payable to his or her parent, guardian or other person supporting him or her.



O. Notice. Any notice required to be given under this Contract shall be provided by the notifying party to the other party in writing, and deposited, first class postage paid, in the U.S. Mail. Notice to the parties shall be provided to the following addresses:

If to Delta Dental:

Delta Dental of Wyoming
6705 Faith Drive/P.O. Box 29
Cheyenne, WY 82009

If to Policyholder, notice shall be provided to the address for Policyholder stated in Policyholder's application.

Policyholder shall notify Delta Dental of any address change not less than sixty (60) days prior to the date the address change becomes effective. In witness whereof, DELTA DENTAL PLAN OF WYOMING, by its duly authorized officer, has executed this Contract.

DELTA DENTAL PLAN OF WYOMING BY:

A handwritten signature in blue ink that reads "Kerry P. Hall".

Kerry P. Hall, President & CEO

Date: *April 28, 2026*

ACCEPTED: City of Cheyenne
PAYMENT OF FIRST MONTH'S PREMIUM CONSTITUTES ACCEPTANCE.

Company: City of Cheyenne
Group #: 1007

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APPENDIX A DEFINITIONS

To the extent any definition in this Appendix is inconsistent with a definition of the same term provided by any other Policy document, the definition provided in this Appendix shall control.

Allowable Period - the period in which an insurance company will pay claims for services covered by the relevant insurance policy or coverage.

Allowed Fee - the amount Delta Dental will pay a Treating Dentist for Covered Services rendered to a Covered Person.

Annual Maximum Benefit - the maximum Benefit each Covered Person is eligible to receive for Covered Services in a Contract Year.

Benefits - the benefits for dental services which are available under the terms of this Contract to Covered Persons and Eligible Dependents.

Benefits/Policy Handbook - the document that outlines the Benefits provided for Covered Persons pursuant to this Contract. The Benefits/Policy Handbook is issued to the Policyholder by Delta Dental and given to Covered Persons by the Policyholder.

Calendar Year - A "calendar year" is a standard calendar year, beginning on January 1 and ending on December 31.

COBRA - the Consolidated Omnibus Budget Reconciliation Act, or COBRA, is a law that gives employees and elected officials who have been covered by health insurance pursuant to employment to continue their health insurance coverage, under certain conditions, once the employee and elected official's employment ends.

Contract - this document including if applicable, any appendices, riders, amendments, or renewals now or hereafter issued or executed.

Contract Term - the period commencing on the Effective Date and continuing for the period described in Section I.C and includes any renewal or extension of this Contract.

Contract Year - the twelve (12) month period beginning on the Effective Date of this Contract.

Co-payment - the co-insurance payment that the Subscriber or Dependent must pay for Covered Services.

Covered Person - a Subscriber or a Dependent.

Deductible - the amount a Subscriber or Dependent must pay toward Covered Services before Delta Dental is obligated to pay for Covered Services under this Contract.

Delta Dental - Delta Dental Plan of Wyoming, a non-profit dental service corporation, d.b.a. Delta Dental of Wyoming, acting for itself.

Dentist - a duly licensed dentist licensed to practice dentistry at the time and in the place dental services are performed.

Dependent - An Eligible Dependent of a Subscriber, for whom the Subscriber has elected to obtain Coverage.

Eligible Dependent - any person defined as an "Eligible Dependent" by the Policyholder's Group Application. If "Eligible Dependent" is not defined in the Group Application, "Eligible Dependent" shall mean:

- a. An Eligible Employee or Elected Official's lawful spouse.
- b. Dependent children until the child reaches the age of 26, unless otherwise noted in the Group's Contract.
- c. Eligible Employee or Elected official's children including step, adopted and non-custodial children.
- d. A dependent child or guardian's ward age 26 or older, unless otherwise specified in this Contract, may continue to be eligible as an Eligible Dependent if the child or ward is medically certified as medically or physically disabled and financially dependent upon the parent (who is the Subscriber or the Subscriber's spouse) or guardian. A physician's certificate must be submitted to Delta Dental within six (6) months following the child or ward attaining this age.

Delta Dental shall not deny Coverage for a Dependent child or guardian's ward for the sole reason that the child or guardian's ward is not living in the home of the parent or guardian who is the Subscriber.

Eligible Employee or Elected Official - any employee and elected official of Policyholder who meets the conditions of eligibility for Coverage established by the Policyholder.

Eligible Person -the Subscriber and/or any Eligible Dependents.

Eligibility Period - the period starting on the date a Policyholder's employee or elected official becomes eligible for Coverage under the terms of this Contract.

Enrollment Date - the date in which the eligible person satisfies the requirements for coverage.

Group - the employer, association, union or other organization Contracting with Delta Dental to provide Benefits to its Eligible Employees, Elected Officials and/or their respective Dependents, if applicable.

HIPAA (Health Insurance Portability and Accountability Act) - a federal law that requires health plans, health care clearinghouses and health care providers (including Dentists) who transmit health information in an electronic transaction, to use a standard format and observe certain privacy and security requirements for protected health information.

Maximum Annual Benefit - the maximum aggregate amount Delta Dental will pay for Diagnostic & Preventive, Basic and Major covered services in any calendar or contract year. The Maximum Annual Benefit is stated on a per-person basis total per calendar/contract Year on Diagnostic & Preventative, Basic and Major Services.

Maximum Plan Allowance - the maximum amount that Delta Dental will pay for a Covered Service.

Non-Participating Dentist - a Dentist who has not entered into a written participation agreement with Delta Dental.

Orthodontic Lifetime Maximum - the aggregate amount a Subscriber's Coverage will pay during the Subscriber's lifetime (or the Subscriber's Dependents respective lifetimes) for orthodontic treatment. Please refer to the Summary of Benefits and/or Benefit/Policy Handbook to determine if you have coverage.

The Orthodontic Lifetime Maximum incorporates any limitations on "work in progress" and "take over" orthodontia outlined in the applicable Summary of Benefits and/or Benefit/Policy Handbook.

Participating Dentist - a Dentist who has entered into a written participation agreement with Delta Dental, or a Delta Dental affiliate in the state in which the Dentist practices.

Policy - the Coverage created by this Contract, incorporating all terms and conditions of any application submitted by the Policyholder, each Subscriber and Dependent, the Benefit/Policy Handbook and Summary of Benefits (if any) and any endorsement.

Premium - the amount payable monthly by Policyholder to Delta Dental in exchange for Delta Dental providing the Coverage to a Covered Person pursuant to this Contract.

Subscriber - an Eligible Employee and Elected Official who (a) has completed and signed the documents necessary for Coverage under the Contract, or who has otherwise been identified by the Policyholder as having elected to have obtained Coverage under the Policy; (b) has been accepted by Delta Dental as a Subscriber, and (c) for whom the appropriate Premium has been paid.

Summary of Benefits - a listing of the specific Benefits and Benefit limitations provided under the Policy, pursuant to the terms and conditions of this Contract.

Treatment Plan - an integrated course of dental services provided for therapeutic purposes to a Covered Person, some or all of which are Covered Services.

**APPENDIX IV
LIMITATIONS ON SERVICES**

- A. Exams and bitewing x-rays are a Benefit once in a six (6) month period (not to exceed two in one year), unless otherwise noted on the summary of benefits.
- B. Prophylaxis (cleaning) is a Benefit once in a six (6) month period (not to exceed two in one year), unless otherwise noted on the summary of benefits.
- C. Topical fluoride applications are a Benefit once every twelve (12) months (until the end of the month age nineteen (19) is attained), unless otherwise noted on the summary of benefits.
- D. Space maintainers are a Benefit only to maintain space of primary teeth (until the end of the month age nineteen (19) is attained), unless otherwise noted on the summary of benefits.
- E. Sealants on posterior permanent teeth is a Benefit once every two (2) years per eligible tooth until the end of the month age nineteen (19) is attained. Coverage only applies to non-decayed, non-restored 1st and 2nd permanent molars.
- F. Prosthodontic appliances (including bridges, partial and complete dentures), cast crowns, jackets, and cast restorations will be replaced only after five (5) years have elapsed following any prior placement of such appliances under any Delta Dental Program.
- G. Interim (surgical or temporary) dentures are considered optional services and are not a Benefit. Replacement will be made of an existing prosthodontic appliance only if it is unsatisfactory and cannot be made satisfactory.
- H. Porcelain or metallic inlays and veneers are considered optional, and as such, are not Covered Services.
- I. Fixed bridges and/or removable partials are not a Benefit for Dependents under age sixteen (16). An allowance equal to the cost of a temporary acrylic partial will be made. A fixed bridge is not a Covered Service when done in connection with a removable partial denture in the same arch.
- J. Cast crowns, veneer crowns and jackets are not Covered Services for Dependents age sixteen (16) or under. An allowance equal to the cost of an acrylic crown or preformed stainless-steel crown will be made. (Benefits may be subject to waiting periods, as outlined in the Group's Summary of Benefits).
- K. Reline or rebase of dentures are a Benefit only twice in a five (5) year period.
- L. Full mouth x-rays once in a five (5) year period are payable separately or in conjunction with other diagnostic x-rays unless otherwise noted on the summary of benefits.
- M. Oral Surgery is limited to extractions and surgical dental alveolar procedures and soft tissue lesions. Fractures of the jaw and other oral surgery procedures are not Benefits of the plan.
- N. Orthodontic services (if a Benefit listed in the Benefit/Policy Handbook and summary of Benefits) is payable for Dependents who are less than 19 years of age, unless otherwise noted in the Benefit/Policy Handbook or Summary of Benefits.

APPENDIX V EXCLUSIONS

For purposes of this Appendix VI, "you" refers to the Policyholder, Subscriber or Eligible Dependent, as applicable depending on the person seeking or receiving services.

- A. You are not covered for services or supplies received before the Effective Date of coverage.
- B. You are not covered for any fees charged by your dental office because of broken appointments.
- C. Your plan does not cover charges for consultation.
- D. Your plan does not cover any charges to complete forms.
- E. Your plan does not cover services for cosmetic surgery or dentistry for aesthetic reasons.
- F. Your plan does not cover any charges for the duplication of dental records.
- G. You are not covered for dental services that have not been completed.
- H. You are not covered for restorations or procedures necessary due to allergies or allergic reaction to dental treatment materials such as allergies to metals or mercury.
- I. You are not covered for prescription, non-prescription drugs, medicines or therapeutic drug injections.
- J. Your plan does not cover dental procedures, services, treatment and supplies which are not dentally necessary, or which do not meet generally accepted standards of dental practice.
- K. Your plan does not cover plaque control programs, oral hygiene instruction and dietary instructions.
- L. You are not covered for services or supplies when someone else has the legal obligation to pay for your care, and when, in the absence of this Contract, you would not be charged. This may include, but not limited to, treatment of injuries intentionally inflicted or sustained while committing a criminal act as a form of civil disobedience.
- M. You are not covered for services provided in other than a dental office setting. This includes, but is not limited to, any hospital or surgical/treatment facility.
- N. Whether or not we have approved a Treatment Plan, you are not covered for treatment received after you or your Group's Coverage termination date.
- O. You are not covered for services or treatment performed by other than a licensed dentist or his or her employees.
- P. You are not covered for services or supplies that are or could have been compensated under Workers' Compensation laws, including services or supplies applied toward satisfaction of any Deductible under your employer's Workers' Compensation coverage.

- Q.** You are not covered for services for which the Covered Person has or had a right to payment under a Program of a government or plan established by law except; (a) Medicare; (b) Medicaid; (c) Tricare and (d) where the law does not permit this type of exclusion.
- R.** You are not covered for prosthodontic services, unless specified on the Summary of Benefits.
- S.** You are not covered for orthodontic services, unless specified on the Summary of Benefits.
- T.** Your plan does not cover appliances for bruxism, grinding or clenching of teeth unless your plan has coverage for temporomandibular joint (TMJ) dysfunction.
- U.** Crowns will only be considered a covered service if provided for therapeutic purposes. Crowns are not a Benefit for cosmetic, attrition or preventive reasons.
- V.** Any procedure which (1) is for the purpose of changing vertical dimension; or (2) relates to bite registration, bite analysis, or the correction of the bite; or (3) is for replacing tooth structure lost as a result of abrasion or attrition; or (4) is for equilibration or restorations for malalignment of the teeth; or (5) gnathologic recordings.

APPENDIX VII.D CLAIMS APPEAL PROCESS

When making the request for review or reconsideration, the Subscriber should include his or her ID number and claim number on the documentation.

The Subscriber, Dependents and/or the Subscriber's authorized legal representative have up to one hundred eighty (180) days to appeal, in writing, Delta Dental's adverse Benefit determination of an authorization of services or claim for Benefits. Upon receipt of an appeal from a Subscriber, Dependent and/or Subscribers authorized legal representative, Delta Dental will notify the Subscriber, Dependent and/or the Subscriber's authorized legal representative of its determination within a reasonable period of time, but no later than forty-five (45) days after receiving the request.

Note: To be eligible for external review, the timelines above must be followed, and the Delta Dental internal review process must first be exhausted.

Subscribers should mail or hand deliver their requests for an internal claims review to:

Delta Dental of Wyoming
6705 Faith Drive
P.O. Box 29
Cheyenne, WY 82009

Subscribers have the right to be represented by an attorney or other duly authorized legal representative at any stage of their appeal. Subscribers or their authorized legal representatives have the right to review documents that pertain to their appeal. These documents are on file in the office of Delta Dental at the above address. Delta Dental will need seventy-two (72) hours' notice to assemble the documents pertaining to an appeal.

For internal review, the Claims Review Committee of Delta Dental will review the appealed claim(s) and consider all information available pertaining to the appeal. Whether or not the initial decision is changed, Subscribers will receive a written response and explanation within forty-five (45) days of Delta Dental receiving their request for review.

A. External Claims Review Procedure

If Delta Dental denies the Subscriber's request for the provision of or payment for a dental care service or course of treatment on the basis that it is not dentally necessary, or on another similar basis, the Subscriber may have a right to have the adverse determination reviewed by dental care professionals who have no association with Delta Dental of Wyoming and are not the attending dental care professional or dental care professionals partner by following the procedures outlined here.

The Subscriber must submit a request for external review within one hundred twenty (120) days after receipt of the claims denial to Delta Dental of Wyoming's appeals office and after all internal review processes have been exhausted. For a standard external review, a decision will be made within forty-five (45) days of receiving the request.

This request must be made in duplicate and include a fee of fifteen dollars (\$15) payable by check or money order to the Office of the Wyoming State Treasurer. This fee may be waived for a Subscriber whose income is at or below the current federal poverty guidelines and who files a

financial hardship application available upon request from the Wyoming Insurance Department. When filing a request for an external review, the Subscriber will be required to authorize the release of any dental records of the Subscriber to Delta Dental and/or the external reviewer that may be required to be reviewed for the purpose of reaching a decision on the external review.

B. Dental Necessity Denials:

Expedited review: The Subscriber may be entitled to an expedited review when his or her condition or circumstances require, and in any event within seventy-two (72) hours where:

1. The timeframe for the completion of a standard review would seriously jeopardize the Subscriber's life or health or would jeopardize his or her ability to regain maximum function; or
2. The Subscriber's claim concerns a request for admission, availability of care, continued stay or dental care service for which he or she received medical emergency services, but has not been discharged from a healthcare facility.

To request an external review or an expedited review, the Subscriber must submit the following completed documents that accompanied his or her claims denial:

- Request form
- Release or authorization for records
- Healthcare professionals' statement of dental necessity
- Any other documents necessary

The Subscribers' request must be received at Delta Dental of Wyoming, 6705 Faith Drive, P.O. Box 29, Cheyenne WY, 82009 within one hundred twenty (120) days of the date of the Notice of Appeal Rights.